

23VECV03137 23VECV03137

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-10

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Case Number: 23VECV03137 Hearing Date: July 10, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANDASOL, LLC, a California Limited Liability Company; FURNITUREWALA, LP,

Plaintiffs,

vs.

GL CONSTRUCTION PROJECT MANAGEMENT, INC.; KACIE A. PLOUFF, individually and d.b.a. CHRISTENSEN & PLOUFF; DOES 1 through 100.

Defendants.

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CASE NO.: 25VECV03960

C/W: 23VECV03137

ORDER DENYING PLAINTIFF GUY LAHAV'S MOTION FOR LEAVE TO AMEND

GL CONSTRUCTION PROJECT

MANAGEMENT, INC., a California

corporation,

Cross-Complainants,

vs.

ANDASOL, LLC, a California Limited

Liability Company; KACIE A. PLOUFF,

individually and d.b.a.

CHRISTENSEN & PLOUFF; and DOES 1 THROUGH 100, inclusive,

Cross-Defendants.

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KACIE A PLOUFF, individually and d.b.a. CHRISTENSEN & PLOUFF,

Cross-Complainant,

vs.

GL CONSTRUCTION PROJECT MANAGEMENT, INC. and ROES 1 through 50, inclusive,

Cross-Defendants.

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GUY LAHAV, an individual,

Plaintiff,

vs.

KACIE A. PLOUFF, individually and doing business as CHRISTENSEN & PLOUFF; BOYD CHRISTENSEN, individually and doing business as CHRISTENSEN & PLOUFF; and DOES 1 through 100, inclusive,

Defendants.

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I. BACKGROUND

In Case No. 23VECV03137, Plaintiffs Andasol, LLC ("Andasol") and Furniturewala, LP ("Furniturewala") hired GL Construction Project Management ("GL Construction") as general contractor for the construction of five homes in Encino, California. GL Construction retained Kacie A. Plouff d.b.a. Christensen & Plouff ("Plouff"), a land surveyor, to survey the properties where the homes would be built. Andasol and Furniturewala allege Plouff inaccurately staked the locations for two homes using inapplicable setback requirements. Andasol and Furniturewala allege GL Construction proceeded to build the homes without first obtaining the requisite inspections by the City of Los Angeles Department of Building and Safety ("LADBS"). Andasol and Furniturewala allege they incurred a loss after having to tear down two homes built with incorrect setbacks and rebuild them at the correct locations

On March 13, 2026, the Court deemed this action, Case No. 23VECV03137, and Case No. 25VECV03960 related.

On April 30, 2026, the Court consolidated Case Nos. 23VECV03137 and 25VECV03960. The Court designated 23VECV03137 as the lead case.

In Case No. 25VECV03960, Plaintiff Guy Lahav ("Lahav") brings a single cause of action for breach of contract against Kacie A. Plouff, Christensen & Plouff, Boyd Christensen individually and doing business as Christensen & Plouff arising from their July 2021 staking of two residences at 17340 and 17341 West Amina Place, which required the demolition and reconstruction of the two partially built homes.

Lahav now moves for leave to file his first amended complaint.

II. PROCEDURAL HISTORY

On July 20, 2023, Andasol and Furniturewala filed a Complaint against Defendants GL Construction and Plouff for (1) Breach of Contract and (2) Negligence.

On December 1, 2023, GL Construction filed a Cross-Complaint against Andasol, LLC and Plouff for (1) Declaratory Relief and (2) Breach Of Contract.

On January 1, 2024, Plouff filed a Cross-Complaint against GL Construction for (1) Implied Indemnity; (2) Equitable Indemnity; (3) Apportionment/Contribution; and (4) Declaratory Relief.

On April 29, 2024, Andasol and Furniturewala designated Boyd Christensen as "Doe 1."

On July 12, 2024, Plouff and Boyd Christensen ("Christensen") filed a First Amended Cross-Complaint for (1) Implied Indemnity; (2) Equitable Indemnity; (3) Apportionment/Contribution; and (4) Declaratory Relief.

On July 31, 2024, Plouff designated Chris Brown, individually and d.b.a. Qualified Development and Management, LLC as "Roe 1."

On July 14, 2025, the Court denied GL Construction's Motion for Leave to File a First Amended Cross-Complaint ("FAXC"). The Court also granted Kacie A. Plouff, individually and doing business as Christensen & Plouff, and Boyd Christensen's Motion for Determination of Good Faith Settlement.

On July 16, 2025, in Case No. 25VECV03960, Plaintiff Guy Lahav ("Lahav") filed a Complaint against Kacie A. Plouff, Christensen & Plouff, Boyd Christensen individually and doing business as Christensen & Plouff alleging (1) Breach of Contract.

On September 18, 2025, the Court granted Andasol's Request for Dismissal as to Kacie A. Plouff, individually and doing business as Christensen & Plouff, and Boyd Christensen.

On January 30, 2026, the Court granted GL Construction's Motion for Leave to Amend to File a First Amended Cross Complaint.

On February 6, 2026, GL Construction filed a FAXC alleging (1) Breach Of Contract [1st Project Contract]; (2) Breach Of Contract [2nd Project Contract]; (3) Breach Of Contract [Street Works Contract]; (4) Cause Of Action Against Surety On Mechanic's Lien Release Bond; (5) Negligence; (6) Inducing Breach Of Contract; and (7) Intentional Interference With Contractual Relations.

On February 19, 2026, in Case No. 23VECV03137, the Court granted the parties' stipulation for Plaintiffs to file a First Amended Complaint.

On February 20, 2026, Andasol and Furniturewala filed a FAC alleging (1) Breach Of Contract; (2) Negligence; (3) Breach Of Contract; (4) Breach Of Implied Warranty; And (5) Negligence-Construction Defect.

On March 13, 2026, the Court deemed this action and Case No. 25VECV03960 related.

On April 30, 2026, the Court consolidated Case Nos. 23VECV03137 and 25VECV03960. The Court designated 23VECV03137 as the lead case.

On May 28, 2026, the Court sustained Defendants Kacie A. Plouff and Boyd Christensen's demurrer to Lahav's Complaint.

On June 15, 2026, in Case No. 25VECV03960, Lahav filed the instant Motion for Leave.

On June 16, 2026, in Case No. 23VECV03137, Lahav filed a First Amended Complaint alleging (1) Breach of Contract.

III. LEGAL STANDARD

Code of Civil Procedure § 473(a) [1] provides: "The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc. § 473(a)(1); see also Code Civ. Proc. § 576.)

A motion for leave to amend a pleading must comply with the procedural requirements of Rules of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and

propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)

IV. ANALYSIS

The Motion will be denied as moot. Lahav filed this Motion in Case No. 25VECV03960. However, on April 30, 2026, the Court consolidated Case No. 23VECV03137 with Case No. 25VECV03960; the former was designated as the consolidated lead with all future documents to be filed under that action. (See April 30, 2026, Minute Order.) Lahav timely filed his First Amended Complaint in Case No. 23VECV03137 after the demurrer was sustained as to his Complaint. (See May 28, 2026, Minute Order.) Because all pleadings and motions must be filed under Case No. 23VECV03137, and Lahav complied with this instruction by filing his FAC in that action, his requested relief is moot.

V. CONCLUSION

Based on the foregoing, the Court DENIED Lahav's Motion for Leave as moot. The Status Conference scheduled for July 30, 2026, will remain on calendar.

IT IS SO ORDERED.

DATED: July 10, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.